

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-017
Amendments to Titles 5 and 17 of the Chickasaw Nation Code
(Criminal Offenses)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for criminal offenses, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations and create new rules and regulations for criminal offenses.

NOW, THEREFORE, BE IT RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 15, Section 5-1502.6, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 5-1502.6

BREAKING AND ENTERING.

“A. It shall be unlawful to break into by any force whatsoever and enter in any manner any dwelling, office, room, apartment, tenement, shop, warehouse, store, mill, barn, stable, garage, tent, vessel, railroad car, airplane, motor vehicle, trailer or semitrailer, mobile home, trunk, drawer, box, coin operated machine, or similar structure, object, device of another without consent **and without the intent to commit any crime therein.** ~~with the intent to: 1. cause annoyance or injury to any person therein; 2. cause damage to any property therein; 3. commit any offense therein; 4. steal; or 5. cause, or does actually cause, whether intentionally or recklessly, fear for the safety of another.~~”

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following language to be codified at Title 17, Chapter 3, Sections 17-301.1 17-301.2, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 17-301.1**UNLAWFUL ENTRY.**

A. It shall be unlawful to enter in any manner, under circumstances not amounting to any burglary or breaking and entering, any dwelling, office, room, apartment, tenement, shop, warehouse, store, mill, barn, stable, garage, tent, vessel, railroad car, airplane, motor vehicle, trailer or semitrailer, mobile home, or any similar enclosed structure of another without consent and with the intent to:

1. cause annoyance or injury to any person therein,
2. cause damage to any property therein,
3. commit any offense therein,
4. steal, or
5. cause, or does actually cause, whether intentionally or recklessly, fear for the safety of another.

B. Unlawful Entry shall be punishable by a fine of not to exceed five thousand dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, or by both such fine and imprisonment.

SECTION 17-301.2**MALICIOUS MISCHIEF.**

A. It shall be unlawful to maliciously injure, deface, or destroy any real or personal property not his or her own.

B. Malicious Mischief shall be punishable by a fine of not to exceed five thousand dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, or by both such fine and imprisonment.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following language to be codified at Title 17, Chapter 4, Section 17-401.1, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

CHAPTER 4
CRIMES AGAINST PUBLIC PEACE,
HEALTH, SAFETY, AND WELFARE

(RESERVED)

SECTION 17-401.1**POSSESSION OF FIREARM BY A PROHIBITED POSSESSOR**

A. It shall be unlawful for any Prohibited Possessor to have any firearm or ammunition in their possession or under their immediate control, or in any Motor Vehicle which the Prohibited Possessor is operating or riding as a passenger, or at the place where the Prohibited Possessor resides.

B. For purposes of this Section:

1. Prohibited Possessor shall mean a person who:
 - a. has been convicted of a crime punishable by a term of imprisonment exceeding one year in any jurisdiction;
 - b. has been convicted of any crime of domestic violence in any jurisdiction;
or
 - c. is, at the time of possession, prohibited from possessing a firearm by a court order from any jurisdiction.
2. Firearm shall mean any pistol, imitation or homemade pistol, altered air or toy pistol, machine gun, sawed-off shotgun or rifle, or any other dangerous or deadly destructive device, excluding antique firearms.

C. Possession of Firearm by a Prohibited Possessor shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following language to be codified at Title 17, Chapter 5, Section 17-501.5, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 17-501.5**POSSESSION OR PROCUREMENT OF CHILD PORNOGRAPHY**

A. It shall be unlawful for any person who shall procure or cause the participation of any minor under the age of eighteen (18) years in any Child Pornography or who knowingly possesses, procures, or manufactures, or causes to be sold or distributed any Child Pornography.

B. "Child Pornography" shall mean and includes any visual depiction or individual image stored or contained in any format on any medium including, but not limited to, film, motion picture, videotape, photograph, negative, undeveloped film, slide, photographic product, reproduction of a photographic product, play or performance wherein a minor under the age of eighteen (18) years is engaged in any act with a person, other than his or her spouse, of sexual intercourse which is normal or perverted, in any act of anal sodomy, in any act of sexual activity

with an animal, in any act of sadomasochistic abuse including, but not limited to, flagellation or torture, or the condition of being fettered, bound or otherwise physically restrained in the context of sexual conduct, in any act of fellatio or cunnilingus, in any act of excretion in the context of sexual conduct, in any lewd exhibition of the uncovered genitals in the context of masturbation or other sexual conduct, or where the lewd exhibition of the uncovered genitals, buttocks or, if such minor is a female, the breast, has the purpose of sexual stimulation of the viewer, or wherein a person under the age of eighteen (18) years observes such acts or exhibitions. Each visual depiction or individual image shall constitute a separate item and multiple copies of the same identical material shall each be counted as a separate item.

C. Possession or Procurement of Child Pornography shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

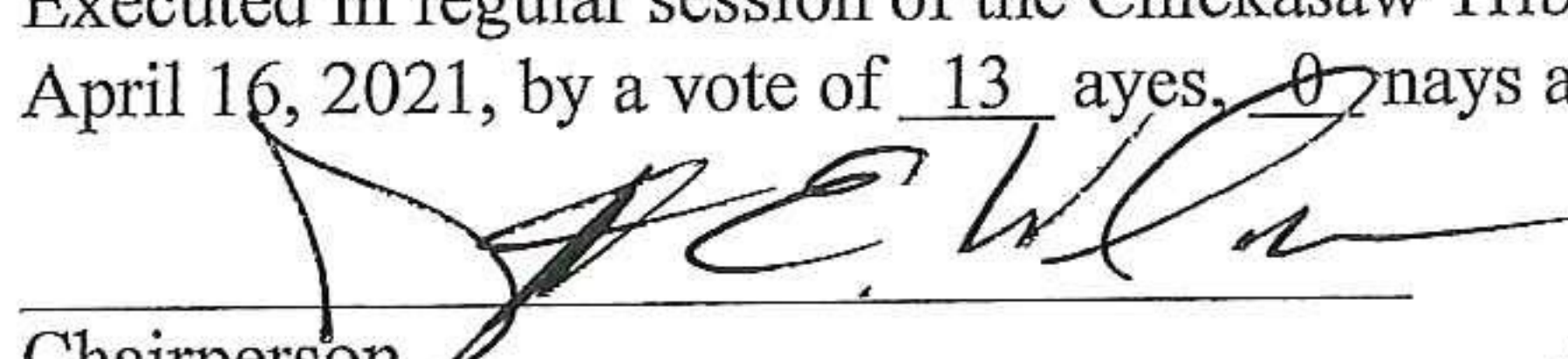
BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following language to be codified at Title 17, Chapter 6, Section 17-601.1, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

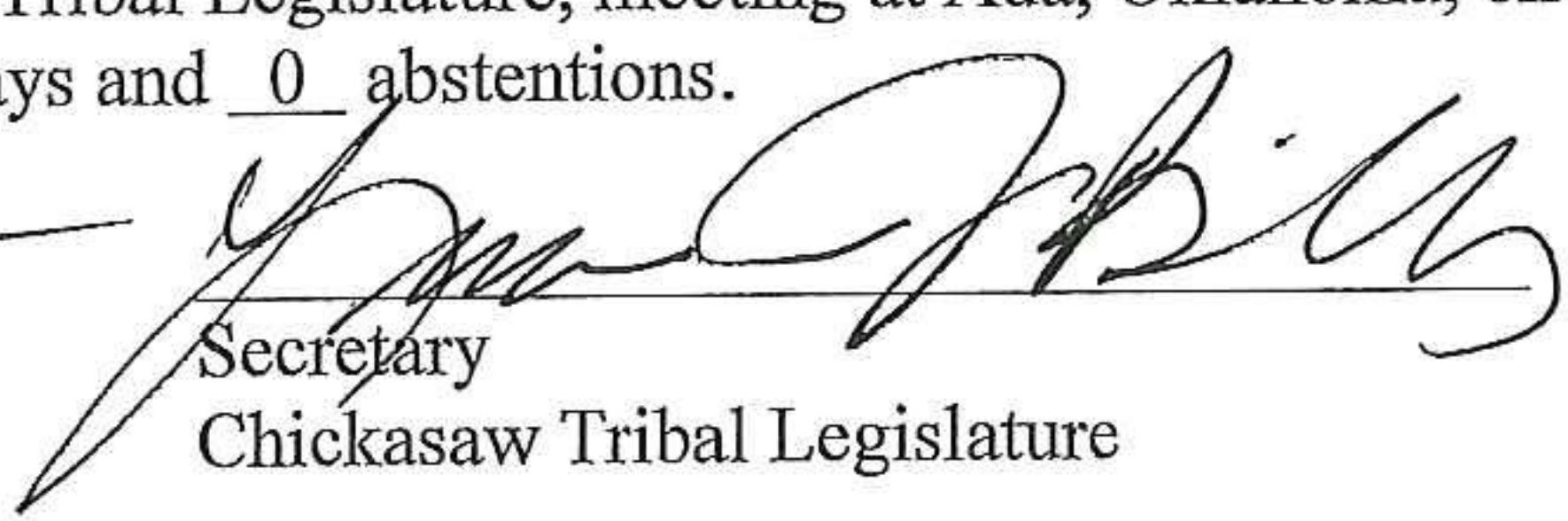
CHAPTER 6
OFFENSES AGAINST PUBLIC AUTHORITY ~~JUSTICE~~
(RESERVED)

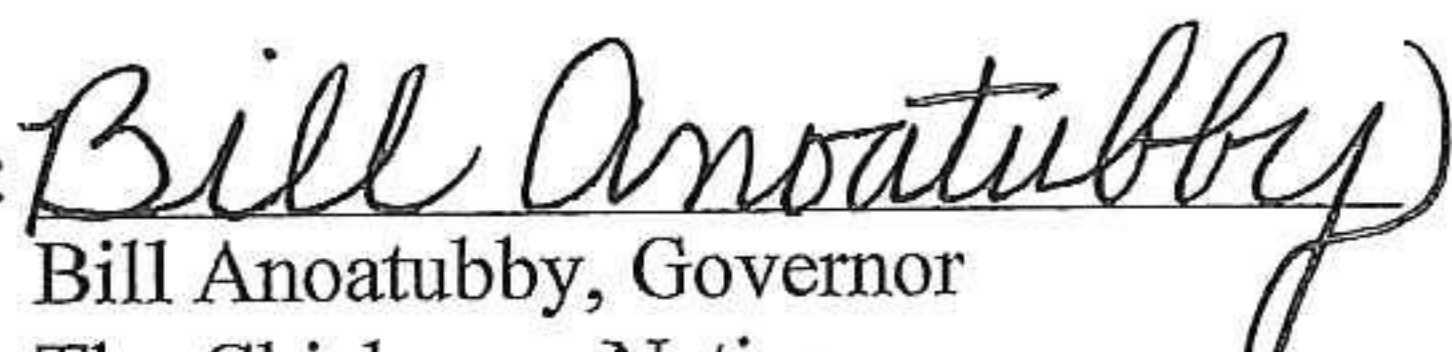
SECTION 17-601.1 **FAILURE TO OBEY A LAW ENFORCEMENT OFFICER.**

It shall be unlawful for any person who willfully delays or obstructs any Law enforcement Officer in the discharge or attempt to discharge any duty. Failure to Obey a Law Enforcement Officer shall be punishable by a fine not to exceed five thousand dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, or by both such fine and imprisonment.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on April 16, 2021, by a vote of 13 ayes, 0 nays and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: APR 16 2021

CHICKASAW TRIBAL LEGISLATURE
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(Criminal Offenses)

Explanation:

This resolution creates new sections in Title 17. The new sections add offenses for unlawful entry, possessing a firearm when prohibited by law, possession and procurement of child pornography, and failure to obey a law enforcement officer.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature